

Strategic Analysis of Parallel Civil and Criminal Proceedings in Cross-Border Debt Recovery Under Polish Law

Executive Summary: Direct Resolutions to Core Inquiries

Before proceeding to the exhaustive procedural, dogmatic, and jurisprudential analysis required to navigate the complexities of cross-border debt recovery under Polish law, the explicit questions regarding the viability and interaction of parallel civil and criminal tracks are addressed directly:

1. Can both proceed simultaneously?

Yes. There is no statutory bar in either the Code of Civil Procedure (KPC) or the Code of Criminal Procedure (KPK) that prevents a creditor from maintaining an open civil claim (including within the Electronic Writ of Payment system, EPU) while simultaneously filing a criminal notification (*zawiadomienie o podejrzeniu popełnienia przestępstwa*) for the exact same underlying historical facts. The two tracks operate independently in their initial phases, serving different systemic functions (private restitution vs. public penalization).

2. Will the civil/EPU case be suspended because of the criminal case? No, suspension is decidedly not mandatory. Under Article 177 § 1 pkt 4 KPC, the suspension of a civil trial pending a criminal investigation is strictly discretionary (*fakultatywne zawieszenie postępowania*).¹ In the highly automated environment of the EPU (Sąd Rejonowy Lublin-Zachód), a suspension based on an external criminal complaint is virtually non-existent during the initial documentary phase. Even if the case converts to ordinary proceedings following a statement of opposition (*sprzeciw*), civil courts are highly reluctant to suspend proceedings merely because an early-stage criminal investigation is pending, as civil courts possess the autonomy to make their own factual findings regarding the formation and breach of a contract. The identity of the party requesting the suspension matters significantly; when requested by the debtor, it is almost universally interpreted by the civil court as a dilatory tactic and dismissed.

3. Can I hold both a civil execution title AND a criminal restitution order for the same 155,000 PLN? No. This is strictly prohibited by the anti-cumulation clause (*klauszula antykumulacyjna*) enshrined in Article 415 § 1 sentence 2 of the KPK.² A claimant cannot obtain a criminal restitution order (*obowiązek naprawienia szkody* under Article 46 KK) if the identical claim against the identical entity has already been validly adjudicated (*res iudicata*) or is pending (*lis pendens*) in a civil court.² Because a sole proprietorship (JDG) is not a separate legal entity from the natural person, complete identity of parties exists. Consequently, the creditor may only enforce the debt once, and securing a civil title permanently extinguishes the possibility of obtaining the criminal restitution order. Furthermore, the absolute prohibition of double recovery (*zakaz podwójnego zaspokojenia*) ensures that even if two titles were generated by systemic error, collecting the debt once extinguishes the substantive basis of the

other, rendering any further execution illegal and subject to an anti-enforcement action (*powództwo przeciwegzekucyjne*).

4. Timing and Sequencing Strategy The optimal strategy dictates initiating the criminal track immediately to leverage investigative asset-tracing and cross-border freezing mechanisms (under EU Regulation 2018/1805), while deliberately slowing down or modulating the civil track.⁶ Securing a final civil *nakaz zapłaty* too early is a fatal strategic error, as it permanently blocks the criminal court from issuing an Article 46 KK order.⁴ The criminal title is strategically superior due to the coercive leverage of Article 244c KK, which criminalizes the evasion of a compensatory measure.⁸

5. The utility of a "wniosek o przyspieszenie rozpoznania sprawy" in EPU Filing a motion to expedite (*ponaglenie* or *wniosek o przyspieszenie*) in Sąd Rejonowy Lublin-Zachód is of negligible utility.¹⁰ The EPU is an algorithmic, mass-processing environment managing millions of claims. Unless there are extreme humanitarian or systemic failure grounds, administrative expedients are generally absorbed into the standard queue without altering the processing timeline. Attempting to accelerate the EPU in this specific context is also strategically counterproductive.

Part I: The Procedural Architecture of Simultaneous Proceedings

The Polish legal system explicitly permits the parallel operation of civil and criminal proceedings stemming from the same historical event. The underlying philosophy of this dual-track system rests on the divergence of statutory objectives. Civil law seeks to restore the patrimonial balance of the creditor through the enforcement of private obligations, whereas criminal law seeks to penalize offenses against property—such as fraud (*oszustwo* under Article 286 § 1 KK)—and protect public order and the integrity of economic turnover.

The Independence of Jurisdictions in the Initial Phases

When a creditor files an Electronic Writ of Payment (EPU) claim under Article 505[29a] KPC¹³, they are invoking the state's judicial apparatus to recognize and enforce a purely private obligation based on documented evidence. Concurrently, submitting a notification of a suspected crime (*zawiadomienie o podejrzeniu popełnienia przestępstwa*) to the local Prosecutor's Office (*Prokuratura*) initiates a public-law investigative mechanism. The prosecutor's mandate is not debt collection; it is to determine whether the debtor's conduct met the strict statutory criteria of fraud. Specifically, the prosecutor must establish whether the debtor acted with a preconceived, direct intent to defraud (*zamiar bezpośredni kierunkowy*) at the exact moment the obligation was incurred.

There is no procedural mechanism that automatically merges these tracks at their inception. The EPU court in Lublin-Zachód operates within a closed digital ecosystem and remains entirely ignorant of any actions taken by a district prosecutor unless explicitly informed by the parties. The civil procedure focuses on the objective breach of contract (non-payment of 155,000 PLN by the due date), while the criminal procedure focuses on the subjective state of mind of the debtor (Mateusz Szklarski) when entering into the transaction.

Interplay and Evidentiary Synergy Between the Tracks

While the tracks operate independently, they are not hermetically sealed from one another in terms of evidentiary impact. The question of whether one case can "help" the other requires a nuanced understanding of Polish evidentiary law.

Can a civil judgment help the criminal case?

Yes, but with limitations. A final civil judgment (*prawomocny wyrok*) establishing the existence of the debt and the debtor's failure to pay serves as powerful documentary evidence in the criminal file. It unequivocally resolves the objective element of the crime—that an economic loss occurred and that a valid obligation was breached. However, the civil judgment cannot substitute for the prosecutor's burden of proof regarding the *mens rea*. The criminal court will not automatically convict Mateusz Szklarski of fraud under Article 286 § 1 KK merely because he lost a civil lawsuit. The prosecutor must still prove the subjective intent to deceive or exploit the victim's error.

Can the criminal case help the civil case?

Profoundly so, provided it reaches a specific procedural milestone. Under Article 11 of the Code of Civil Procedure (KPC), a civil court is absolutely bound by the findings of a final, binding criminal conviction (*prawomocny wyrok skazujący*) regarding the commission of a crime. If the criminal court convicts Mateusz of fraud, the civil court is legally prohibited from revisiting whether the act occurred or whether Mateusz was at fault. This binding effect radically streamlines the civil evidentiary process. However, this binding effect applies *only* to convictions. A civil court is not bound by an acquittal (*wyrok uniewinniający*), a conditional discontinuation of proceedings (*warunkowe umorzenie postępowania*), or a prosecutor's decision to discontinue the investigation (*umorzenie śledztwa/dochodzenia*).

Furthermore, the investigative phase of the criminal track can yield immense tactical benefits for the civil track. The prosecutor has sweeping powers to subpoena banking records, trace asset transfers, and compel witness testimony—evidence that is often inaccessible to a civil claimant due to banking secrecy laws. The victim, acting as an injured party (*pokrzywdzony*), can request access to the criminal case files and utilize the evidence gathered by the prosecutor to bolster their civil arguments, locate hidden assets, or prove the invalidity of fraudulent asset transfers (*skarga pauliańska*).

Part II: The Dynamics of Discretionary Suspension (Article 177 § 1 pkt 4 KPC)

A pervasive and often paralyzing apprehension among litigators is that initiating a criminal case will automatically stall the civil track. This fear is rooted in the wording of Article 177 § 1 pkt 4 KPC, which governs the intersection of parallel proceedings.¹

The Statutory Framework of Article 177 KPC

Article 177 § 1 pkt 4 KPC stipulates that a civil court *may* suspend proceedings if the determination of the civil case depends on the outcome of another pending civil proceeding, or if an act is revealed whose determination in criminal or disciplinary proceedings could influence

the outcome of the civil case.¹

The phrasing of this statute demands meticulous deconstruction. The operative word in Polish jurisprudence is "może" (may), establishing a facultative (discretionary) framework rather than a mandatory directive.¹ The mere existence of a parallel criminal investigation is legally insufficient to force a civil judge to halt their proceedings.

Suspension in the Electronic Writ of Payment (EPU) Phase

During the electronic phase in Sąd Rejonowy Lublin-Zachód, before a writ of payment (*nakaz zapłaty*) is issued, the concept of suspension based on an external criminal complaint is essentially incompatible with the automated, algorithmic architecture of the e-court.¹⁰ The court referendary (*referendarz sądowy*) operating within the EPU system assesses only the formal validity of the claim, the mathematical correctness of the interest calculations, and the logical coherence of the facts as presented in the standardized digital forms.¹³ The system is not designed to process complex motions regarding external criminal inquiries *in rem* or *in personam*. Attempting to file motions regarding a pending prosecutor's inquiry during this phase will generally be ignored or dismissed, as the EPU operates on a strict documentary presumption.

Suspension in Ordinary Proceedings Following a Sprzeciw

If the debtor, Mateusz Szklarski, files an effective statement of opposition (*sprzeciw*), the EPU writ loses its legal force in its entirety (Article 505 KPC), and the case is transferred to a court of general jurisdiction appropriate for the defendant's domicile.¹³ It is at this juncture, in ordinary civil proceedings, that the risk of a suspension motion arises.

A sophisticated debtor facing both a civil trial and a criminal investigation will frequently file a motion to suspend the civil trial under Article 177 § 1 pkt 4 KPC, arguing that the civil court should wait for the prosecutor to definitively determine if a fraud occurred.¹

However, contemporary Polish civil courts approach such motions with intense judicial skepticism. Established Supreme Court jurisprudence dictates that a civil court is fully competent and constitutionally obligated to make its own autonomous findings regarding civil liability, the formation of contracts, and their breach. Civil judges are acutely aware that criminal proceedings, particularly those involving cross-border elements and financial fraud, can drag on for several years. To suspend a straightforward debt collection case pending a multi-year criminal investigation would severely violate the claimant's right to a trial within a reasonable time.

Therefore, courts typically apply the following matrix when evaluating a suspension request:

1. **Who is requesting the suspension?** If the claimant requests it (perhaps hoping to rely on a future criminal conviction to trigger Article 11 KPC), the court might consider it if the civil evidence is weak. If the *debtor* requests it, it is almost universally classified as a dilatory tactic designed to stall execution, and the motion is rejected.
2. **At what stage is the criminal case?** If the criminal case is merely in the *in rem* phase (investigating the event) or the *in personam* phase (charges presented, but no indictment), suspension is extremely rare. Suspension is only seriously considered if

the criminal trial is nearing a final verdict that could fundamentally alter the civil liability landscape.

In the context of the present 155,000 PLN debt, the creditor is not at risk of self-sabotage by filing the criminal complaint. The civil action will not be forcefully halted merely because a prosecutor has opened a file. The civil court will proceed to adjudicate the debt based on invoices, contracts, and correspondence, entirely independently of the prosecutor's analysis of Mateusz's *mens rea*.

Part III: The Anti-Cumulation Clause (Art. 415 KPK) and the Illusion of Double Titles

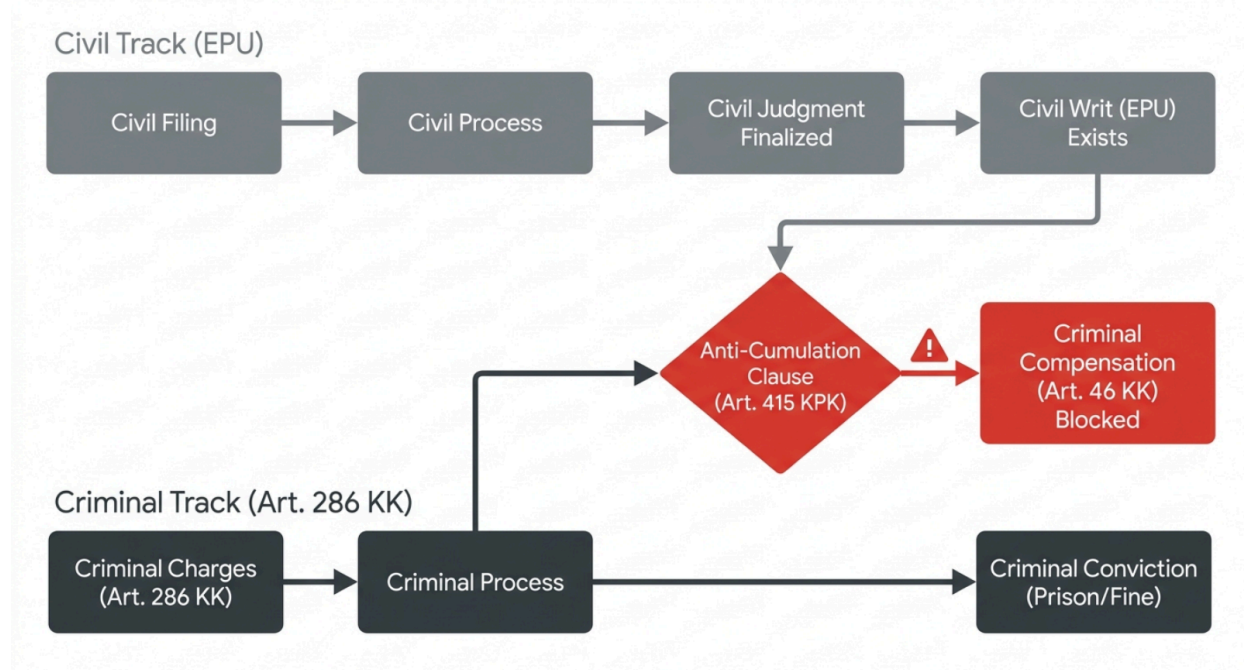
While the procedural tracks may run parallel and independently, their terminal outcomes are mutually exclusive when it comes to the specific financial remedy awarded to the victim. This mutual exclusivity is governed by the absolute prohibition against double recovery, rigorously codified in the anti-cumulation clause of the Code of Criminal Procedure.

The Mechanics and Dogmatics of Article 415 § 1 KPK

Article 415 § 1, sentence 2 of the KPK (formerly § 5) represents the most critical strategic chokepoint in parallel litigation strategy.² The statute dictates a categorical negative premise: a criminal court *shall not* adjudicate an obligation to repair damage (*obowiązek naprawienia szkody* under Article 46 § 1 KK) if the claim resulting from the commission of the crime is already the subject of another proceeding (*lis pendens*) or if a legally binding judgment has already been issued regarding that claim (*res iudicata*).²

The jurisprudential purpose of this clause is fundamental to the integrity and stability of the judicial system. It serves to prevent the proliferation of multiple, identical execution titles circulating in the legal economy. Allowing two titles for the exact same debt would expose the debtor to the theoretical and practical risk of being forced to pay the identical obligation twice, violating constitutional principles of property protection and the doctrine of *ne bis in idem* in its broader civil-pecuniary application.³

The Strategic Bottleneck of Article 415 KPK



The Anti-Cumulation Clause strictly prevents the duplication of execution titles. Securing a civil writ of payment effectively neuters the criminal court's ability to award compensatory measures, regardless of whether the civil title proves enforceable.

The Requirement of Identity (Tożsamość Podmiotowa i Przedmiotowa)

For the anti-cumulation clause to activate and block the criminal court, there must be strict identity of the object (*tożsamość przedmiotowa*) and identity of the subject (*tożsamość podmiotowa*) between the two proceedings.²

- **Objective Identity:** The financial compensation sought in the criminal trial must stem from the exact same historical loss and encompass the same 155,000 PLN claimed in the civil suit. If the criminal trial seeks to repair the damage of the unpaid invoice, the object is identical.
- **Subjective Identity:** The claimant (the victim) and the defendant (the perpetrator) must be identical in both proceedings.²

In complex corporate litigation, lawyers frequently bypass this clause by exploiting the corporate veil. For example, if a creditor obtains a civil judgment against a limited liability company (*Spółka z o.o.*) but the company proves insolvent, the creditor can subsequently file criminal fraud charges against the President of the Management Board (*Prezes Zarządu*) as an individual. In such a scenario, the Supreme Court has repeatedly ruled that the anti-cumulation clause *does not apply* because the civil title is directed against a distinct legal entity (the *Sp. z o.o.*), while the criminal restitution order is directed at a natural person (the Board Member).

Subjective identity is broken.²

However, the specific case facts at hand present a fatal distinction that closes this loophole. The debtor operates a *Jednoosobowa Działalność Gospodarcza* (JDG - Sole Proprietorship) under the commercial name "GPUcomputer" [User Prompt]. Under Polish civil and commercial law, a JDG possesses no separate legal personality. It is merely a natural person engaged in registered business activity. Mateusz Szklarski the individual, and Mateusz Szklarski operating as GPUcomputer, are the exact same legal entity. Therefore, absolute subjective identity exists. If a civil writ of payment is issued against the JDG, it is legally and functionally identical to a title against the natural person.

The Supreme Court's Ruthless Stance on Unenforceable Titles

The most dangerous misconception harbored by litigators is the belief that if the civil title proves to be worthless—because the debtor hides assets and the bailiff returns a decision of ineffective execution (*postanowienie o bezskuteczności egzekucji*)—the creditor can simply switch tracks, point to the uncollected debt, and ask the criminal court for an Article 46 KK order to try again.

The Polish Supreme Court has explicitly, repeatedly, and ruthlessly closed this specific loophole. As cited in entrenched jurisprudence (e.g., SN from Nov 16, 2011, III KK 270/11)⁴, for the strict application of the rule set out in Article 415 § 1 sentence 2 KPK, it is utterly irrelevant whether the claim previously adjudicated in civil proceedings was actually executed, or whether the execution proved totally ineffective.⁴ The anti-cumulation clause is absolute and makes no exceptions for sterile, unenforceable execution titles.⁴

The systemic logic behind this austere stance is that the criminal court's function is not to act as a secondary debt collection agency to repair the failures of the civil enforcement system. If the creditor consciously chose the civil path and secured a binding title, the state has fulfilled its duty to provide a legal instrument for recovery. The failure to collect the money is viewed as a matter of factual insolvency or enforcement inefficiency, which a criminal sentence cannot magically cure.

Therefore, securing a final *nakaz zapłaty* from Lublin-Zachód operates as a permanent procedural barricade. Once that civil writ becomes final and binding, the criminal court is statutorily forbidden from awarding the 155,000 PLN back to the victim under Article 46 KK, no matter how egregious the fraud or how clearly the guilt is established.

The Prohibition of Double Recovery and Resolution of Erroneous Duplication

What occurs if a claimant inadvertently or deceptively manages to obtain both a civil judgment and a criminal restitution order for the same 155,000 PLN? This represents a systemic error, usually resulting from the criminal court failing to verify the existence of the civil title.

First, under the fundamental principle of the prohibition of double recovery (*zakaz podwójnego zaspokojenia*), the creditor can only collect the 155,000 PLN once. The existence of two pieces of paper does not multiply the underlying substantive right.

Second, if the debt is fully satisfied based on one of the titles (e.g., the debtor pays the bailiff

executing the civil writ), the substantive obligation is extinguished. The second title immediately loses its material basis. If the overzealous creditor then attempts to enforce the second title, the debtor possesses a highly effective defense mechanism: the anti-enforcement action (*powództwo przeciwegzekucyjne*) under Article 840 KPC. The debtor would sue to deprive the second execution title of its enforceability, proving that the underlying obligation has already been satisfied.

Furthermore, if the criminal court issues an Article 46 KK order despite a pre-existing civil title, that criminal judgment is tainted by a gross violation of procedural law (Article 415 KPK). This constitutes grounds for an extraordinary appeal, such as a cassation (*kasacja*) to the Supreme Court or an extraordinary complaint (*skarga nadzwyczajna*), leading to the vacatur of the compensatory portion of the criminal sentence. Thus, attempting to "hold both" is not only practically useless for doubling the money but also creates profound procedural instability.

The Nuance of Holding Two Titles: Non-Dischargeability Benefits

While holding two titles for the exact same restitution is prohibited, there is a strategic nuance regarding the broader benefits of criminal proceedings. The user questions if there is an advantage to holding a civil title alongside the effects of a criminal case, specifically concerning non-dischargeability.

Under Polish Bankruptcy Law (*Prawo upadłościowe*), obligations resulting from a deliberate wrong, including intentional crimes, are generally non-dischargeable in consumer bankruptcy proceedings. If the strategy yields a civil *nakaz zapłaty* (securing the financial claim) AND the criminal court convicts Mateusz of fraud under Article 286 § 1 KK and sentences him to prison (without awarding Article 46 KK compensation due to the anti-cumulation clause), the creditor still benefits. The criminal conviction provides binding proof (via Article 11 KPC) that the civil debt arose from an intentional crime. Should Mateusz attempt to file for bankruptcy in Poland or elsewhere in the EU to discharge the 155,000 PLN debt, the creditor can produce the criminal conviction to ensure the debt survives the bankruptcy process.

However, as analyzed in the subsequent section, pursuing this path sacrifices the most potent collection tool available in Polish law.

Part IV: Comparative Efficacy: Why the Criminal Title is Strategically Superior

Given that the creditor can only effectively utilize one execution title to satisfy the 155,000 PLN debt, a rigorous comparative analysis of the utility of a civil *nakaz zapłaty* versus a criminal *obowiązek naprawienia szkody* (Article 46 KK) is mandatory.

Historically, the distinction was less pronounced; both titles were ultimately forwarded to the same civil bailiff (*komornik*) and suffered from identical enforcement hurdles if the debtor obscured their assets. However, sweeping legislative amendments to the Penal Code in 2015 and, crucially, a revolutionary addition in October 2023, have radically transformed the debt recovery landscape. These changes have elevated the criminal title to a position of vast strategic superiority, particularly against recalcitrant or cross-border debtors.⁸

The 2015 Dogmatic Shift: From Penal Repression to Pure

Compensation

Prior to 2015, the obligation to repair damage (Article 46 KK) was classified strictly as a penal measure (*środek karny*). Its primary theoretical objective was to punish the perpetrator, with the victim's restitution acting as a secondary byproduct. In 2015, recognizing the need to prioritize victim rights, the legislature fundamentally reclassified Article 46 KK. It stripped it of its purely penal character and established it as a dedicated compensatory measure (*środek kompensacyjny*).⁸

This dogmatic shift solidified the victim's autonomy. It ensured that the primary goal of the measure was strict restitution, aligning its function closely with civil damages, but embedding it within the coercive machinery of the criminal justice system.⁹

The 2023 Gamechanger: Article 244c KK and the Criminalization of Evasion

Despite the 2015 reforms cementing the compensatory nature of the order, victims continued to struggle with enforcement. Debtors who were sentenced to repair the damage often employed the same asset-hiding tactics used against civil bailiffs, treating the criminal compensation order as merely another unenforceable piece of paper.

To aggressively remedy this enforcement gap, the legislature introduced a draconian new tool effective October 1, 2023: Article 244c of the Penal Code.⁸

Article 244c KK establishes an entirely new standalone criminal offense: the intentional evasion of a court-ordered compensatory measure. The statute dictates that any individual who evades the execution of an obligation to repair damage (Article 46 KK) ordered by a court on behalf of a victim is subject to a term of imprisonment ranging from 3 months to 5 years.⁸

Strategic Superiority of the Criminal Restitution Order

STRATEGIC FEATURE	CIVIL TITLE (Nakaz Zapłaty)	✓ CRIMINAL TITLE (Art. 46 KK)
Legal Nature	Pursuit of civil property claims. Priority in standard civil process.	✓ Compensatory measure directly ordered by criminal courts.
Consequence of Non-Payment	Continued bailiff actions.	⚠ Immediate criminal liability Art. 244c KK explicitly criminalises the evasion of this specific compensatory measure.
Leverage	Standard execution leverage within the bounds of civil debt collection.	✓ Offers unmatched coercive leverage, significantly enhancing the efficacy of enforcing adjudicated measures.

Following the 2023 penal code amendments, the criminal restitution order offers unmatched coercive leverage. Evading a civil judgment results only in continued bailiff actions, whereas evading an Article 46 KK order triggers immediate criminal liability under Article 244c KK.

Data sources: [Ius Novum](#), [Kancelaria Adwokacka \(KARH\)](#), [CEJSH](#)

This single legislative stroke profoundly alters the power dynamics of debt recovery:

- Civil Title Weakness:** If the debtor aggressively ignores a civil *nakaz zapłaty*, empties their accounts, and works off the books, the only consequence is the mathematical accumulation of statutory interest and the periodic, fruitless annoyance of a civil bailiff issuing requests for information. There is no direct deprivation of liberty for failing to pay a civil contract debt; such a penalty is strictly prohibited by Protocol No. 4 to the European Convention on Human Rights and core Polish constitutional principles.
- Criminal Title Power:** Conversely, if the debtor ignores a criminal Article 46 KK order, the creditor is no longer limited to civil bailiffs. The creditor can simply draft a new notification to the prosecutor, triggering a fresh criminal investigation under Article 244c KK.⁸ The threat of imminent incarceration specifically for the act of evasion

fundamentally changes the psychological calculus of the debtor. Practice shows that the looming reality of a new prison sentence frequently compels even the most recalcitrant, ostensibly "insolvent" debtors to suddenly locate the resources necessary to satisfy the victim.⁹

If the creditor aggressively pushes the EPU claim to a final *nakaz zapłaty*, they trigger the anti-cumulation clause (Article 415 KPK) and permanently lock themselves out of obtaining the Article 46 KK order.² Consequently, they completely lose the ability to deploy the devastating leverage of Article 244c KK against the debtor. The advising lawyer's inclination to push the EPU claim rapidly for the mere sake of obtaining an execution title may be tactically sound for a compliant, domestic debtor with visible assets. However, against a sophisticated debtor who has relocated across borders, it represents a severe strategic miscalculation that sacrifices ultimate leverage for procedural speed.

Part V: The "Fiction of Service" Fallacy and Cross-Border Realities

The user notes that the current legal counsel favors letting the EPU run its course because of the perceived "fiction of service" (*fikcja doręczenia*) advantage, using this as the primary rationale to advise against withdrawing the civil claim [User Prompt]. This advice relies on an outdated, fundamentally flawed understanding of the current Code of Civil Procedure, particularly concerning how the system handles cross-border defendants.

The Eradication of Easy Double-Awizo

Historically, a plaintiff could provide an address pulled from the CEIDG registry, and if the postal worker left two delivery notices (double *awizo*) that went uncollected by the debtor, the court automatically applied a strict fiction of service. The document was deemed legally served regardless of reality, the *nakaz zapłaty* became final, and the creditor swiftly moved to execution.

However, massive amendments to the KPC (specifically the introduction of Article 139(1) KPC in 2019, refined further in 2023) fundamentally altered this process to protect defendants from unaware judgments and abusive debt collection practices.²⁰

Under the current legal regime, if the first procedural document in a case (which includes the *nakaz zapłaty* in EPU) sent to a natural person (including a JDG operator) is returned uncollected after a double *awizo*, the EPU court will absolutely not apply the fiction of service. Instead, the court will suspend the fiction and obligate the plaintiff to serve the documents personally via a court bailiff (*doręczenie komornicze*) within a strict two-month timeframe.²⁰

The Bailiff's Field Verification Mandate (Art. 3a of the Bailiffs Act)

When the creditor inevitably hires a bailiff to serve the EPU writ, the bailiff is not merely a specialized courier. Under Article 3a of the Act on Court Bailiffs, the bailiff is legally mandated to physically visit the premises and conduct an investigative field verification to establish whether the debtor actually resides at the indicated address.²³

- If the bailiff finds the debtor, they serve the document directly.

- If the bailiff establishes beyond doubt (e.g., via neighbors) that the debtor lives there but is actively avoiding the door, they leave a notice, and only in this specific, verified scenario does a heavily scrutinized fiction of service finally apply.²³
- **The Critical Failure Point:** If the bailiff questions neighbors, landlords, or current occupants and establishes that the debtor no longer resides there and has relocated abroad (e.g., to the Netherlands, as known in this case facts), the bailiff must return the documents to the creditor with an official protocol noting that the debtor does not reside at the indicated address.²³

Article 505 KPC and the Absolute Foreign Address Prohibition

Once it is formally established—either via the bailiff's negative protocol or the debtor's own systemic data—that the debtor resides in the Netherlands, the entire EPU strategy collapses instantly.

The Electronic Writ of Payment system is statutorily and architecturally incapable of handling cross-border service of process.¹³ According to systemic rules governing the e-court, if the defendant's place of residence or registered seat is outside the borders of the Republic of Poland, the Sąd Rejonowy Lublin-Zachód categorically lacks the competence to issue the *nakaz zapłaty*.²⁵

If a *nakaz* was preliminarily issued before the foreign address was discovered, the court will proactively revoke the writ and dismiss the proceedings entirely (*umorzenie postępowania*).¹⁴

This is because cross-border service of judicial documents requires applying complex EU Regulations—specifically Regulation (EU) 2020/1784 on the service of documents—which necessitate translations, transmission to foreign receiving agencies, and extended timelines that the highly automated, fast-track EPU system is expressly not designed to execute.²⁴

Therefore, relying on the "fiction of service" for a debtor definitively known to reside in the Netherlands is an illusion. The EPU court will inevitably encounter the bailiff's negative verification, leading to the inescapable cancellation of the proceedings and a total loss of the time and filing fees invested since April 2026. The perceived advantage of the civil track is legally non-existent in this cross-border factual matrix.

Part VI: Securing Assets Across Borders (The Netherlands)

The core objective of the creditor is not merely obtaining a judgment, but securing the 155,000 PLN. The user correctly seeks an asset freeze against the debtor located in the Netherlands. The current counsel advises against withdrawing the EPU to seek a civil asset freeze (*zabezpieczenie roszczenia*). This advice is partially correct in recognizing that civil asset freezing is highly cumbersome, but it demonstrates a critical blind spot by ignoring the vastly superior cross-border asset freezing powers uniquely available through the criminal track.

The Severe Limitations of the Civil Asset Freeze

To freeze assets civilly, the creditor must file a formal motion for security (*wniosek o udzielenie zabezpieczenia*) before a civil court, demonstrating both the high probability of the claim's

validity and a legal interest in securing it (i.e., proving that lack of security will frustrate or severely hinder future execution).

Even if a Polish civil court grants this security order, enforcing a Polish civil freezing order against Dutch bank accounts requires navigating the procedural complexities of the Brussels I bis Regulation (Regulation (EU) No 1215/2012 on jurisdiction and the recognition and enforcement of judgments in civil and commercial matters).²⁷

While Brussels I bis significantly streamlined cross-border litigation by abolishing the archaic exequatur process (meaning the Polish order is recognized automatically without a special Dutch court procedure), executing it remains a purely private endeavor. The creditor must independently locate and hire Dutch bailiffs (*gerechtsdeurwaarders*) to execute the civil freeze. This process is expensive, requires certified translations of the Polish orders, demands substantial upfront fee advances to the Dutch bailiffs, and relies on the creditor's own private intelligence to identify which specific Dutch banks hold the debtor's accounts.

The Criminal Asset Freeze (Art. 291 KPK) and EU Regulation 2018/1805

In stark contrast, initiating the criminal track unlocks state-sponsored asset tracing and freezing mechanisms that operate with far greater efficiency, reach, and power across European borders.

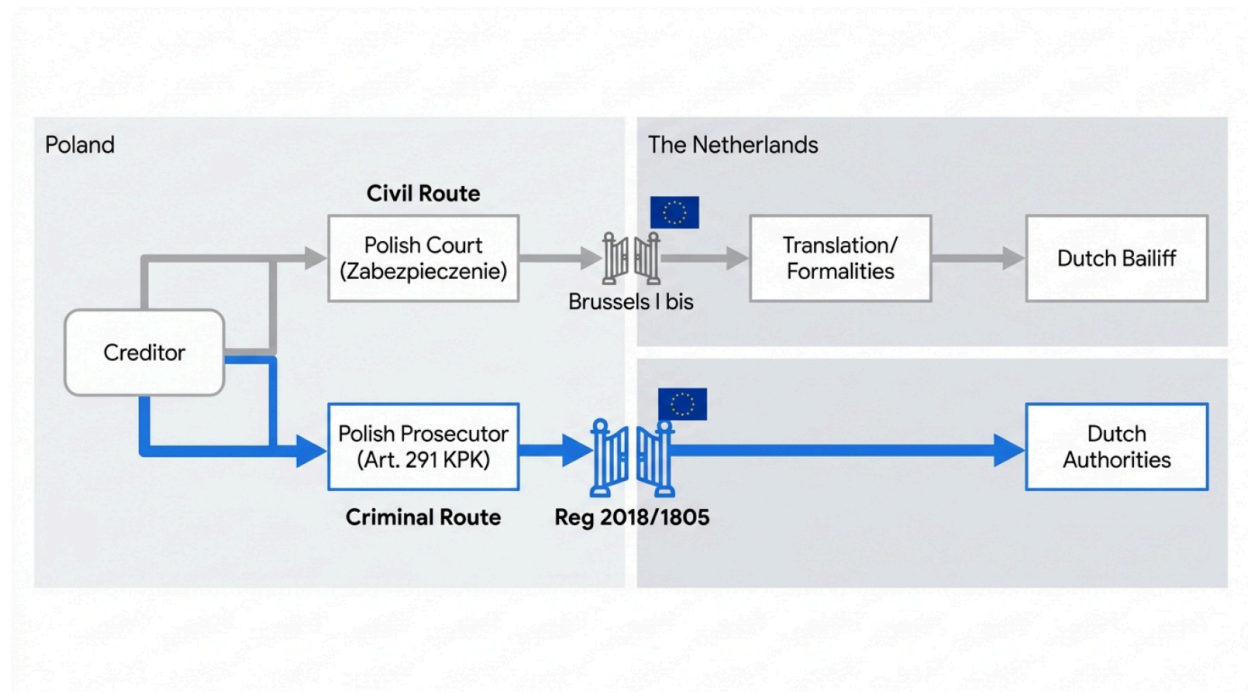
Under Article 291 of the Polish Code of Criminal Procedure, the prosecutor has the explicit authority, even during the preparatory phase (*postępowanie przygotowawcze*) before formal charges are brought, to issue a decision on the securing of property (*postanowienie o zabezpieczeniu majątkowym*) upon the assets of the suspect.³⁰ This security is intended to guarantee future financial penalties, including the anticipated obligation to repair the damage (Article 46 KK) owed to the victim.³⁰

Crucially, the prosecutor's reach is not limited by Polish borders. The mutual recognition of freezing orders within the European Union has been revolutionized by **Regulation (EU) 2018/1805 on the mutual recognition of freezing orders and confiscation orders**, which entered into force and became directly applicable in December 2020.⁶

Under the robust framework of Regulation 2018/1805:

1. **Direct State-to-State Transmission:** The Polish prosecutor issues a standardized freezing certificate based on their domestic Article 291 KPK decision.⁶
2. **Bypassing Civil Networks:** The certificate is transmitted directly through secure channels to the competent executing authority in the Netherlands (typically the *Openbaar Ministerie* or specialized Dutch asset recovery offices), entirely bypassing the need for the victim to hire private foreign bailiffs.
3. **Mandatory and Immediate Execution:** The Dutch authorities are obligated by EU law to recognize and execute the freezing order immediately upon receipt, applying the same speed, priority, and investigative resources as if it were a domestic Dutch criminal investigation.⁶

Pathways for Cross-Border Asset Securing (Poland to Netherlands)



Initiating the criminal track empowers the Polish prosecutor to utilize Regulation (EU) 2018/1805, allowing for direct, state-to-state transmission of freezing orders to Dutch authorities, bypassing the expensive and formalized private enforcement required under civil regulations.

This mechanism allows the victim to freeze Dutch bank accounts, real estate, or corporate shares entirely at the expense of the state, utilizing the robust cooperative networks of European prosecutors. The prosecutor also has access to European banking registers to locate the accounts, relieving the creditor of the investigative burden. For a creditor seeking rapid, impactful asset immobilization abroad, the criminal track is procedurally and economically superior.

Part VII: Strategic Sequencing and Tactical Recommendations

Given the established facts—a clean criminal record (KRZ) for the debtor, the debtor's relocation to the Netherlands, and the pending EPU claim from April 2026—the following sequencing strategy is recommended to maximize leverage, secure assets, and avoid triggering the fatal procedural traps of the anti-cumulation clause.

Step 1: The Futility of the EPU Motion to Expedite

The advising lawyer's suggestion to file a *wniosek o przyspieszenie rozpoznania sprawy*

(motion to expedite) in the EPU is strategically flawed on two distinct fronts.¹⁰

First, as a practical matter, it is highly ineffective. Sąd Rejonowy Lublin-Zachód processes millions of claims algorithmically. A standard B2B debt claim does not meet the exceptional criteria (such as extreme humanitarian need or severe threat to life/health) required to manually bypass the digital queue. The motion will simply be absorbed into the system's massive backlog, generating paperwork without yielding any discernible acceleration of the processing timeline.¹¹

Second, and far more dangerously, successfully accelerating the EPU is strategically counterproductive. As established extensively in Part III, obtaining a final *nakaz zapłaty* is the absolute worst-case scenario if the debtor has hidden assets abroad, because it permanently triggers Article 415 § 1 sentence 2 KPK.⁴ Accelerating the civil title means accelerating the destruction of the right to claim the vastly superior criminal restitution order.

Step 2: Immediately Initiate the Criminal Track

Do not wait for the civil *nakaz zapłaty* to materialize. Draft and file a comprehensive, meticulously documented notification of a suspected crime (*zawiadomienie o podejrzeniu popełnienia przestępstwa*) under Article 286 § 1 KK immediately.

Filing the criminal complaint *now* versus *after* the EPU *nakaz* provides three massive tactical advantages:

1. **Investigative Momentum:** Complex financial fraud investigations require substantial time. The earlier the prosecutor begins gathering international banking records, questioning witnesses, and establishing the debtor's fraudulent intent, the better.
2. **Immediate Asset Freezing:** A prompt criminal filing allows the victim to simultaneously submit a well-reasoned motion for a prosecutor's asset freeze (Article 291 KPK).³⁰ If the prosecutor acts decisively, the assets in the Netherlands can be frozen under Regulation 2018/1805 before the debtor realizes the severity of the situation or attempts to dissipate funds.⁶
3. **Preservation of Art. 46 KK:** Because the civil case in Lublin-Zachód is merely pending and has not resulted in a final judgment, the anti-cumulation clause is not yet fully triggered as *res iudicata*. While the criminal court cannot issue a final ruling on restitution *while* the civil case is pending (*lis pendens*), the victim maintains absolute control over the civil case. The creditor can strategically withdraw the civil claim immediately before the criminal sentence is passed, instantly curing the *lis pendens* defect and clearing the path for the superior Article 46 KK order.²

Step 3: Modulate the EPU Track and Manage the Inevitable Dismissal

The creditor should let the EPU process run its natural, slow course, treating it strictly as a decoy and a fallback measure. If the prosecutor ultimately refuses to initiate an investigation (*odmowa wszczęcia dochodzenia*) or discontinues it due to a lack of provable criminal intent—a common risk in business disputes—the creditor still has the civil track alive as a safety net. Eventually, the EPU court will issue the *nakaz* and attempt postal service. As analyzed, it will fail. The court will then order service via a bailiff under Article 139(1) KPC.²⁰ The creditor must

comply with the order to advance the fees for the bailiff to keep the case alive, but must anticipate that the bailiff will confirm the debtor lives in the Netherlands.²³

At this juncture, the EPU court will recognize its lack of jurisdiction for cross-border service and dismiss the proceedings due to the lack of domestic address (Article 505 KPC).¹³ This dismissal is entirely acceptable and strategically beneficial. It automatically clears the *lis pendens* status without the creditor needing to formally withdraw the claim, ensuring that the criminal court faces no procedural hurdles to issuing the Article 46 KK compensation order when the criminal trial concludes. This positions the creditor to fully exploit the severe consequences of Article 244c KK for non-compliance, securing the highest possible probability of recovering the 155,000 PLN.⁹

The parallel tracks in Polish litigation are not a race to see which finishes first; they are complementary levers that must be sequenced with extreme prejudice. Pushing the civil EPU track to a premature finalization against a cross-border debtor will yield an unenforceable paper judgment that permanently neutralizes the state's most powerful coercive tool. The true leverage in this cross-border scenario lies not in the civil writ, but in the imminent threat of Article 244c KK cascading from a successful, unhindered criminal conviction.

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